

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #04	CCRB Case #: 202106441	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 10/16/2021 9:46 AM, Wednesday, 05/04/2022 9:48 AM	Location of Incident: Central Park North 110th Street Subway station, CCRB office at 100 Church Street	18 Mo. SOL 4/16/2023	Precinct: 28		
Date/Time CV Reported Sat, 10/16/2021 11:11 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/22/2021 3:23 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Gerald McNair	18042	951996	TB M/TF
2. PO Anthony Salado	30187	965493	TB DT03

Officer(s)	Allegation	Investigator Recommendation
A . PO Gerald McNair	Discourtesy: Police Officer Gerald McNair spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . PO Gerald McNair	Force: Police Officer Gerald McNair used physical force against § 87(2)(b)	B . Substantiated
C . PO Gerald McNair	Force: Police Officer Gerald McNair used physical force against § 87(2)(b)	C . Substantiated
D . PO Gerald McNair	Discourtesy: Police Officer Gerald McNair spoke discourteously to § 87(2)(b)	D . Exonerated
E . PO Gerald McNair	Abuse: Police Officer Gerald McNair damaged § 87(2)(b) property.	E . Unsubstantiated
§ 87(2)(g), § 87(4-b)		
G . PO Gerald McNair	Untruthful Stmt.: Police Officer Gerald McNair provided a false official statement to CCRB on May 4, 2022.	G . Substantiated

Case Summary

This complaint was forwarded to the CCRB by IAB on October 22, 2021. The corresponding IAB Log number is § 87(2)(b).

On October 16, 2021, at approximately 9:46am, PO Gerald McNair and PO Anthony Salado, of the Manhattan Transit Bureau, approached § 87(2)(b) while she was inside a subway car at the Central Park North 110th Street subway station in Manhattan. PO McNair allegedly said, “Get the fuck off the train. You’re not going to pick nobody up” (**Allegation A: Discourtesy, Unsubstantiated**). While removing her from the subway station, PO McNair punched § 87(2)(b) and pushed her (**Allegation B: Force, Substantiated, Allegation C: Force, Substantiated**). PO McNair said to § 87(2)(b) “Take that cheap ass bike out of here,” and allegedly broke the brakes, gears, and handle grips of her bicycle (**Allegation D: Discourtesy, Exonerated**) (**Allegation E: Abuse of authority, Unsubstantiated**). § 87(2)(g), § 87(4-b)

On May 4, 2022, at approximately 9:48am, PO McNair provided a false official statement to the CCRB (**Allegation G: Untruthful Statement, Substantiated**).

The CCRB obtained BWC (Board Review 01) and subway station surveillance footage of the incident (Board Review 02).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Gerald McNair spoke discourteously to § 87(2)(b).

On October 16, 2021, at approximately 9:46am, § 87(2)(b) entered the Central Park North 110th Street subway station in Manhattan (Board Review 03). § 87(2)(b) had a pink bicycle with her. § 87(2)(b) was travelling to Brooklyn to pick up her son. She did not have a MetroCard and entered the subway platform via the emergency exit gate located near the turnstiles. § 87(2)(b) immediately boarded the 2 or 3 Brooklyn-bound train as it had just arrived on the track. PO McNair stopped the train door from closing with his foot and entered the car behind her. PO McNair told § 87(2)(b) to exit the train and she refused. PO McNair said, “Get the fuck off the train. You’re not going to pick nobody up.”

PO McNair testified that he was with PO Salado on the Central Park North 110th street subway station platform (Board review 04). This platform is approximately three feet wide. PO McNair observed § 87(2)(b) enter the subway platform through the emergency exit gate without paying the fare. § 87(2)(b) immediately boarded the arriving train with her adult sized bicycle. PO McNair followed § 87(2)(b) into the subway car and asked her to leave the train. § 87(2)(b) refused. PO McNair told § 87(2)(b) that she was holding up the train and delaying its passengers and instructed her to leave the subway car. PO McNair denied saying to § 87(2)(b) “Get the fuck off the train. You’re not going to pick nobody up.”

PO Salado’s testimony was materially similar to PO McNair’s (Board review 05). PO Salado did not recall hearing PO McNair say to § 87(2)(b) “Get the fuck off the train.”

BWC footage recorded by PO McNair and obtained by the CCRB does not depict the portion of this incident that occurred inside the subway car.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation (B) Force: Police Officer Gerald McNair used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Gerald McNair used physical force against § 87(2)(b)

After he told her to leave the train, § 87(2)(b) saw PO McNair reach for his taser and decided to exit the subway car because she did not want to get tasered. § 87(2)(b) stood on the platform with PO McNair and PO Salado. PO McNair held § 87(2)(b) by the arm and held the front tire of her bicycle between his legs. PO McNair asked for her identification. § 87(2)(b) refused. § 87(2)(b) attempted to push her bicycle past PO McNair towards the emergency exit gate to leave the station. As she approached the gate, PO McNair punched § 87(2)(b) on the left side of her chin, grabbed her left wrist, and twisted her left arm behind her back.

PO McNair said that after § 87(2)(b) exited the subway car, she stood on the platform with her bicycle placed between him and her. PO Salado stood behind § 87(2)(b). PO McNair asked § 87(2)(b) for her identification repeatedly because he intended to issue her a summons. § 87(2)(b) refused. After § 87(2)(b) refused to provide her identification, PO McNair decided to eject her from the subway station. PO McNair grabbed the bicycle's handlebars and pulled the bicycle towards himself and the emergency exit gate. PO McNair and § 87(2)(b) pushed and pulled the bicycle between them a few times and walked towards the emergency exit gate. PO McNair opened the gate and guided § 87(2)(b) out of the subway station. PO McNair described § 87(2)(b) demeanor throughout the incident as "irate" and "combative." During his interview, PO McNair was presented with subway station surveillance footage (Board Review 02) depicting this incident, starting at the 16m10s mark. PO McNair said that he could not see himself punch § 87(2)(b) in the footage presented and that he did not want to change his statement.

PO Salado's testimony was materially similar to PO McNair's. PO Salado added that because he was positioned behind § 87(2)(b) and PO McNair as they were exiting the platform, he did not see whether PO McNair made physical contact with § 87(2)(b) body. He did not see PO McNair punch § 87(2)(b).

BWC footage recorded by PO McNair (Board Review 01) depicts § 87(2)(b) and PO Salado standing on the subway platform as a train marked "3" departs the station. At the 00m43s mark, PO McNair moves towards the wall of the platform. He is depicted pulling or guiding a pink adult size bicycle which § 87(2)(b) is holding by the seat and by the right handle. PO McNair pushes the emergency exit gate open with his right hand. § 87(2)(b) bicycle is partially through the gate. § 87(2)(b) lifts her left arm closer to PO McNair. PO McNair grabs § 87(2)(b) left shoulder with his right hand. Simultaneously he grabs her upper left arm with his left hand, as they both continue to pass through the emergency exit gate. At the 00m48s mark, PO McNair punches § 87(2)(b) on the left side of her chin. § 87(2)(b) appears to bend down. PO McNair then grabs her left forearm with his left hand and her left elbow with his right. At the 00m50s mark, PO McNair pushes § 87(2)(b) forward, then right, towards the exit stairway. At the stair landing, at the 00m51s mark, § 87(2)(b) struggles to release her left arm for the next 11 seconds. Audio begins at the 01m00s mark and § 87(2)(b) says, "Get the fuck off of me. I'm leaving, you don't see?" PO McNair continues to command § 87(2)(b) to leave the station until she leaves.

The CCRB obtained subway station surveillance footage (Board Review 02) depicting a view of the emergency exit door § 87(2)(b) used to enter the subway platform. At the 16m10s mark, PO McNair opens the same emergency exit door as he pulls § 87(2)(b) bicycle across its threshold. § 87(2)(b) holds on to her bicycle. As § 87(2)(b) steps up to the door, she lifts her left arm and strikes PO McNair on the chest. § 87(2)(b) lifts her left arm again in PO McNair's direction and PO McNair uses his right hand to push § 87(2)(b) left shoulder, pushing her and her bike through the door. § 87(2)(b) reaches out with her left arm to hold on to the opened door and PO McNair pushes her again with both hands. At the 16m13s mark PO McNair lifts his right hand, forms a fist, and strikes § 87(2)(b) on the chin. § 87(2)(b) body hunches down to a bent over position and she steps forward away from the door and steps out of frame.

Patrol Guide Procedure 221-01 states that "force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable." (Board Review 06)

Video evidence shows PO McNair escorting § 87(2)(b) out of the train station by pulling § 87(2)(b) bicycle through the emergency exit door. § 87(2)(b) holds onto her bicycle in the process and strikes PO McNair on the chest with her left arm. § 87(2)(b) lifts her left arm again in PO McNair's direction and PO McNair pushes § 87(2)(b) left shoulder with his right hand. PO McNair then pushes § 87(2)(b) again with both hands and then lifts his right hand and punches § 87(2)(b) on the chin.

PO McNair denied using any type of force against § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegations B and C be Substantiated.**

Allegation (D) Discourtesy: Police Officer Gerald McNair spoke discourteously to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Gerald McNair damaged § 87(2)(b) property.

After they exited the platform, § 87(2)(b) told PO McNair to let go of her bicycle and he responded, "Here's your piece of shit bike. You're not taking the train to Brooklyn. Ride to Brooklyn now." § 87(2)(b) believed that he intentionally damaged her bicycle, as its brakes, gears, and handle grips were broken by the time he let it go. § 87(2)(b) climbed the steps up to the street level and exited the station. § 87(2)(b) did not provide evidence of the damage done to her bicycle.

PO McNair denied saying, "Here's your piece of shit bike. You're not taking the train to Brooklyn." PO McNair added that he made a reference to § 87(2)(b) bicycle by stating it was a "cheap ass bike." PO McNair said he directed this statement to § 87(2)(b) bike and said it to get her to leave the station. PO McNair said that he was not aware of any damage being done to § 87(2)(b) bicycle during this incident.

PO Salado's testimony was materially identical to PO McNair's.

The BWC footage obtained by the CCRB did not have audio for the first 60 seconds of this incident. At the 01m00s mark, § 87(2)(b) says, "Get the fuck off of me. I'm leaving. You don't see?" PO McNair simultaneously says, "Right. Leave. Leave. Leave," while holding § 87(2)(b) left arm. § 87(2)(b) says, "Get the fuck... I'm going upstairs. I know how to walk. I have to walk, motherfucker." At the same time, PO McNair says, "OK. Walk then. Walk. Walk." § 87(2)(b) says, "Stop touching me then." PO McNair replies, "Walk." § 87(2)(b) says, "I know what I'm doing." PO McNair continues saying, "Walk. Walk. Walk." § 87(2)(b) says, "Don't fucking touch me," as she pulls to release her left arm. PO Salado says, "Stop being frisky." § 87(2)(b) says, "Don't touch me then." PO McNair repeats, "Walk. Walk." § 87(2)(b) responds, "I know how to walk. Don't fucking touch me. Period." PO Salado says, "Go home." § 87(2)(b) says, "I know how to fucking walk." PO McNair continues to command § 87(2)(b) to walk. § 87(2)(b) says, "I don't need y'all dickheads. Where the fuck my other bag at? Fuck out of here niggas. Suck my fucking dick. Bitch. Fuck you talking about?" As she is walking up the stairway, § 87(2)(b) carries her bicycle. She says, "Fuck you." PO McNair says, "Go pick your son up with your bike," as he walks up the stairway one or two steps behind § 87(2)(b). § 87(2)(b) responds, "No, why?" PO McNair says, "Yeah, I'll be here." § 87(2)(b) says, "No, you're not," as they both continue to climb the stairs. § 87(2)(b) says, "[Inaudible] the fuck will you be?" PO McNair says, "I know." § 87(2)(b) says, "I know how to get there. [inaudible] watch. Bitch." PO McNair walks back down the stairs and says, "Take that cheap ass bike out of here." § 87(2)(b) replies, "Bitch." At this point § 87(2)(b) is no longer in frame as she continues to climb up the stairs. PO McNair speaks inaudibly to PO Salado and ends the recording.

DAO-DCT case #2017-17005 states "that profane remarks made during stressful situations, or while an officer is trying to get a chaotic situation under control, are not misconduct." (Board Review 07)

Patrol Guide Procedure 203-09 directs "uniformed members of the service [to] interact with members of the public in a professional manner." (Board Review 11)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **Exonerated**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)
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§ 87(2)(g), § 87(4-b)

Allegation (G) Untruthful Statement: Police Officer Gerald McNair provided a false official statement to the CCRB on May 4, 2022.

During his CCRB interview, PO McNair was presented with MTA footage depicting him punching § 87(2)(b) on the chin (Board Review 04, 02). The footage was slowed down in order to make the action more visible. PO McNair stated that he did not recall punching § 87(2)(b) in the jaw or chin while removing her from the subway station platform. Specifically, PO McNair said, “I’m trying to guide her out of the station but gain control of her at the same time.” When asked specifically about the punch he said, “Punch? No. She was looking to spit at me.” He also said, “I was just trying to gain control of § 87(2)(b). In terms of punching her, I don’t believe I was trying to punch her.” He also added that he was trying to turn her face away from his. PO McNair denied that the actions he took in the footage presented to him constituted a punch to § 87(2)(b) chin or jawline.

Administrative Guide procedure 304-10 defines a false statement as “an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made.” (Board Review 09)

PO McNair claimed that he could not see himself punching § 87(2)(b) on the chin when he was presented with slowed down MTA surveillance footage of this incident. § 87(2)(g)

§ 87(2)(b) although he was provided the opportunity to amend his statement, PO McNair continued to deny having punched § 87(2)(b) § 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (Board Review 12)
- PO McNair has been a member-of-service for ten years and this is the first CCRB complaint to which he has been a subject.
- PO Salado has been a member-of-service for four years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 28, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 10).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: #4

Investigator:	<u>Sara Asselman</u>	<u>Investigator Sara Asselman</u>	<u>07/27/22</u>
	Signature	Print Title & Name	Date

Squad Leader: Raquel Velasquez IM Raquel Velasquez 07/27/2022
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____